

24STCV27664 24STCV27664

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C07%2F09%2F2026

Source SHA-256: d8b646c1be4612e83a741d1d1a981b76a9aecdbdfa7f3cba2b6f6226e7a36f0a

Case Number: 24STCV27664 Hearing Date: July 9, 2026 Dept: 224

Iarusso v. Tandeka McCann

TENTATIVE RULING

A judgment of dismissal is entered for Tandeka McCann given Plaintiff's failure to prosecute and failure to submit all required evidence in support of a default judgment by court-ordered deadlines. No declaration in response, or seeking a continuance has been filed.

ANALYSIS

This matter was filed on October 22, 2024. Default was entered over one year later on November 21, 2025.

A request for entry of a judgment by default must substantively comply with California Rule of Court 3.1800. With respect to deadlines for compliance, those are spelled out in Rule 3.110(h) ("When a default is entered, the party who requested the entry of default must obtain a default judgment against the defaulting party within 45 days after the default was entered, unless the court has granted an extension of time. The court may issue an order to show cause why sanctions should not be imposed if that party fails to obtain entry of judgment against a defaulting party or to request an extension of time to apply for a default judgment within that time.")

California Code of Procedure Section 583.410(a) provides: ("The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.")

On May 22, 2026, the Court noted that after April 10, 2026 OSC, Plaintiff failed to file any corrections to the default judgment package. (Minute Order 5/22/26.) "There is still no interest calculation showing the daily breakdown, or proof that 1109 Alden Avenue, Lompoc, CA 93436 is the correct address of service for Defendant Tandeka McCann." (Id.)

The Court ordered on May 22, 2026, "The OSC is CONTINUED one final time to July 9, 2026 at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit her updated default judgment package by July 3, 2026. This will also be a judgment hearing. If the default judgment package is not filed by the deadline, the Court will find Plaintiff has failed to prove entitlement to judgment and will enter a judgment of dismissal for Defendant on July 9, 2026. No late filings will be considered, and no further continuances will be granted.

A declaration in response to the Order to Show Cause is due by July 3, 2026." (Id.)

As of July 8, 2026 Plaintiff has not addressed the deficiencies in the default judgment package, nor has Plaintiff filed a response to the Order to Show Cause by July 3, 2026, as ordered and required by CRC 3.110(i).